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## Case Background

Terry Smith was a talented member of the mock trial team at Midville High School. Terry's role as a witness in the prior year's mock trial competition was instrumental in the team winning the state competition and placing third at the national competition. This year's team and coach were counting on Terry's talent and experience to lead the team to another state championship – and a chance to finally take home the first-place trophy at nationals.

The team had already begun to work on this year's mock trial case when Terry decided to leave the team to perform in the school's spring musical, *Cats*. Terry believed this was their best shot at earning a scholarship for college, which was otherwise out of reach. Since leaving the mock trial team, Terry has been ignored and bullied by former mock trial teammates. The mock trial team's coach is Pat Putnam, a prominent local attorney and a member of the school board. Pat is aware of the treatment of Terry, but believes that when you let your team down, there are consequences, and it is a good life lesson.

Terry has spoken to the theatre teacher, Bays Sanchez, about the bullying and harassment from prior mock trial teammates. Bays, along with all the teachers, administrators, and volunteers within the school district, was trained by Presley Fisher on the management of threats, emotional distress, and harassment within high schools. In line with the training Bays received, they informed the Dean of Students, Sydney Green, of the issues Terry was having with the mock trial team. Sydney has informed Pat of the incidents.

Bays has a close friend who is an admissions and scholarship advisor for The Juilliard School. This friend has agreed to see Terry's performance in *Cats* to consider them for a scholarship. On the opening night of *Cats*, Terry's world is shocked by a series of social media posts that are scathing reviews of Terry's performance at the dress rehearsal. Terry is so undone by the post that they freeze during their big solo. The Juilliard advisor leaves the performance the minute Terry freezes and tells the theatre teacher that Terry will always be an amateur.

Dr. Lynn Carter is the plaintiff's nationally renowned expert on appropriate practices for management of threats, emotional distress, and harassment within high schools.

## List of Witnesses

The following witnesses are available to be called by the parties. Prosecution witnesses may not testify or be called on behalf of the defendant. Defense witnesses may not testify or be called on behalf of the prosecution. Each side must call all three of their witnesses.

For the Plaintiff:

- Terry Smith
- Bays Sanchez
- Dr. Lynn Carter

For the Defendant:

- Sydney Green
- Pat Putnam
- Presley Fisher

## List of Exhibits

Teams in competition may use the following exhibits:

- Exhibit 1 – Social Media Posts (February 12, 2025)
- Exhibit 2 – Social Media Posts (February 19, 2025)
- Exhibit 3 – Social Media Posts (March 5, 2025)
- Exhibit 4 – Memorandum from Fisher Educational Consulting, LLC
- Exhibit 5 – Bays Sanchez Email to Dean Sydney Green
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- Exhibit 7 – Curriculum Vitae for Presley Fisher

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| STATE OF INDIANA<br><br>COUNTY OF MIDVILLE | SS: | IN THE MIDVILLE SUPERIOR COURT<br>CIVIL DIVISION<br>CAUSE NO. 42D04-2510-CT-0001111 |

TERRY SMITH,
Plaintiff,

v.

MIDVILLE COMMUNITY SCHOOL CORPORATION,
Defendant.

**COMPLAINT**

The Plaintiff, Terry Smith, by counsel, for their complaint against the Midville Community School Corporation, states as follows:

**Parties**

1. Plaintiff Terry Smith is a resident of Midville County, Indiana.
2. Defendant Midville Community School Corporation ("Corporation") is a nonprofit public school corporation in Midville, Indiana. The Corporation oversees the operations of Midville High School in the County of Midville, Indiana.

**Allegations**

3. Plaintiff Terry Smith was a senior student at Midville High School from August of 2024 through May of 2025.

4. Dean Sydney Green was the Dean of Students at Midville High School at all times relevant to the activities and injuries suffered by Terry Smith.
5. Pat Putnam was the volunteer mock trial team coach of Midville High School and a member of the board of the Midville Community School Corporation at all times relevant to the activities and injuries suffered by Terry Smith.
6. Terry Smith was a multi-talented student who, throughout Terry's junior year at Midville, excelled as a member of the Midville High School mock trial team. Terry's contribution to the team centered around a distinct and much recognized ability to perform as a designated witness.
7. Due to Terry's long history of performance in connection with school activities and acting opportunities outside of school, Terry's talent led Midville High School to a third-place victory in the national mock trial competition in the spring of 2024.
8. Due to Terry's desire to please their mock trial teammates, Terry once again lent their talents to the 2024-2025 team.
9. To achieve the dream of a college education and an opportunity to further the development of talent, Terry sought a role in the 2025 spring theatre production at Midville High School.
10. Being a young and dedicated performer, Terry realized that doing both the mock trial and rehearsing for the theatre production was not possible.
11. On January 5, 2025, Terry made the difficult decision to withdraw from the mock trial team.

12. Upon the withdrawal from the team, Terry was subjected to harassment and bullying by team members and other students.
13. The harassment was encouraged by mock trial team coach Pat Putnam.
14. Terry reported the harassment and bullying to a theatre teacher, through whom Dean Syndney Green was made aware of the bullying and harassment.
15. The maltreatment persisted, resulting in Terry being unable to perform on a pivotal night when a scholarship administrator from The Juilliard School was present to see Terry perform.

**COUNT I**

Negligence

16. Plaintiff incorporates all paragraphs of the Complaint as if fully set forth herein.
17. At all times relevant to this cause, Midville Community School Corporation, through its employees and volunteers, owed a duty to Terry to protect them from ongoing and destructive bullying and harassment.
18. Midville Community School Corporation was negligent by not adequately addressing the circumstances of the ongoing maltreatment of Terry.
19. As a result of Midville Community School Corporation's negligence, Terry suffered grave emotional distress, affecting Terry's ongoing mental health and well-being, ultimately resulting in Terry being unable to pursue the

necessary building blocks of college and training to become a productive adult.

## COUNT II

Intentional Infliction of Emotional Distress

20. Plaintiff incorporates all paragraphs of the Complaint as if fully set forth herein.
21. The behavior of Midville Community Schools' board member and mock trial coach, Pat Putnam, under the circumstances, was outrageous and beyond the bounds of a responsible adult in charge of a large group of teens.
22. As a result of Pat Putnam's behavior and lack of sincere intervention, Terry suffered grave emotional distress, negatively affecting Terry's ongoing mental health and well-being, ultimately resulting in Terry being unable to pursue the necessary building blocks of college and training to become a productive adult.

## Jury Demand

Plaintiff, by counsel, demands a trial by jury.

Dated: September 9, 2025

Respectfully submitted,

/s/ Bobby Boone

Bobby Boone
Attorney for Plaintiff
Boone, Bham & Slahm
100 Main Street
Midville, IN 47000

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| STATE OF INDIANA<br><br>COUNTY OF MIDVILLE | SS: | IN THE MIDVILLE SUPERIOR COURT<br>CIVIL DIVISION<br>CAUSE NO. 42D04-2510-CT-0001111 |

TERRY SMITH,
Plaintiff,

v.

MIDVILLE COMMUNITY SCHOOL CORPORATION,
Defendant.

**ANSWER AND AFFIRMATIVE DEFENSES**

Comes now the Defendant, Midville Community School Corporation ("Defendant"), by counsel, and for its Answer to the Complaint filed by Terry Smith ("Plaintiff"), states as follows:

**General Denials**

1. Defendant denies each and every material allegation contained in Plaintiff's Complaint except as expressly admitted herein.
2. Defendant specifically denies that it, its employees, or agents engaged in any conduct that violated Indiana law, school policy, or any student's rights.
3. Defendant denies that Plaintiff was subjected to any unlawful harassment, bullying, or retaliation by employees or students of Midville High School.

## Specific Responses

4. Defendant admits that Plaintiff was a student at Midville High School and a member of the Mock Trial team during the prior academic year.
5. Defendant admits that Pat Putnam served as volunteer coach for the Mock Trial team and that Sydney Green served as Dean of Students.
6. Defendant denies the remaining allegations and demands strict proof thereof. Defendant specifically denies that:
    - Pat Putnam or any staff member encouraged or condoned harassment, bullying, or retaliation against Plaintiff;
    - The School Corporation failed to act upon any report of misconduct; or
    - Plaintiff's alleged emotional distress was proximately caused by any act or omission by Defendant.

## Affirmative Defenses

7. Failure to State a Claim: Plaintiff's Complaint fails to state a claim upon which relief can be granted under Indiana law.
8. Lack of Negligence or Breach: Defendant exercised reasonable care and diligence in supervising students and responding to reported incidents.
9. Compliance with Policy and Law: Defendant, through its administrators, staff, and consultants, including *Fisher Educational Consulting, LLC*, provided mandatory, Department of Education–approved training to all personnel on threat management, emotional distress, and harassment prevention.

10. No Notice of Continuing Harassment: Defendant had no actual or constructive notice of any ongoing bullying or harassment following the single report made by teacher *Bays Sanchez*. Dean *Sydney Green* investigated that report promptly and found no further evidence of misconduct.
11. Intervening and Superseding Causes: Any emotional or reputational harm Plaintiff claims to have suffered was caused by third-party actors or external factors beyond Defendant's control, including social media activity not reported to or known by the school, family dynamics, and unsupported expectations of financial assistance with post high school education.
12. Contributory Conduct: To the extent applicable, Plaintiff's own actions, including engaging in antagonizing behavior toward members of the Mock trial team, and participation in public performances, contributed to any alleged damages.

**Additional Context and Defense Narrative**

13. Dean *Sydney Green* promptly reviewed the only documented concern from *Bays Sanchez*, confirming that no further incidents or reports followed, and that all staff adhered to DOE-mandated procedures for harassment investigations.
14. Volunteer coach *Pat Putnam* adequately addressed the concerns related to any allegations of bullying with the Mock Trial team. Putnam, personally interacted with Plaintiff to ensure Plaintiff was appropriately comforted regarding any allegations or actions by members of the Team.

15. Expert consultant *Presley Fisher* confirms that Midville's staff completed comprehensive, documented training on student safety, bullying prevention, and emotional support, exceeding statewide requirements.

These facts collectively demonstrate that the School Corporation acted appropriately, followed established procedures, and bore no legal responsibility for Plaintiff's alleged distress.

**Prayer for Relief**

WHEREFORE, Defendant respectfully requests that this Honorable Court:

1. Dismiss Plaintiff's Complaint with prejudice;
2. Enter judgment in favor of Defendant and against Plaintiff;
3. Award Defendant its costs and reasonable attorney's fees; and
4. Grant all other relief deemed just and proper.

Dated: October 1, 2025

Respectfully submitted,

/s/ Jordan McAuliffe

Jordan McAuliffe
Counsel for the Defendant
Midville Community School Corporation
McAuliffe, Lauer & Rice
200 Maple Street
Midville, IN 47002

**Jury Instructions**

1. Duty of Jurors: Members of the Jury do not make a decision about the outcome of this case until you have heard all the evidence, the arguments of counsel, and final instructions about the law you will apply to the evidence you have heard. Your decisions must be based only on the evidence presented during this trial and the judge's instructions on the law.

2. Role of Attorneys: The role of attorneys is to zealously and effectively advance the claims of the party they represent within the bounds of the law and the case. An attorney may argue all reasonable conclusions from evidence in the record. It is not proper, however, for an attorney to state an opinion as to the truth or falsity of any testimony or evidence. What an attorney personally thinks or believes about the testimony or evidence in a case is not relevant, and you are instructed to disregard any personal opinion or belief offered by an attorney concerning testimony or evidence.

   What the attorneys say is not evidence. Instead, whatever they say is intended to help you review the evidence presented. If you remember the evidence differently from the attorneys, you should rely on your own recollection.

3. Elements – Burden of Proof: In a civil case such as this one, the burden of proof is by a preponderance of the evidence. Proof by a preponderance of the evidence means proof that something is more likely than not. It means that certain evidence, when compared to the evidence opposed to it, has the more convincing force and makes you believe that something is more likely true than not. Preponderance of the evidence does not depend on the number of witnesses. If the evidence on any particular point is evenly balanced, the party having the burden of proof has not proved that point by a preponderance of the evidence, and you must find against the party on that point.

   In deciding whether any fact has been proved by a preponderance of the evidence, you may, unless I tell you otherwise, consider the testimony of all witnesses regardless of who called them, and all exhibits received into evidence regardless of who produced them. In this case, the plaintiff has the burden of proving each and every element of the claim or claims.

4. There is no single statute that legally defines negligence in Indiana; Rather, negligence is recognized under common-law tort principles and codified procedural and damages rules. To establish negligence in Indiana, a plaintiff must prove 4 elements:
   a. *Duty.* The plaintiff must prove that the defendant owed them a duty of care. A duty of care arises when the law recognizes a relationship between the plaintiff and defendant requiring the defendant to exercise a certain standard of care to avoid harming the plaintiff;

b. *Breach.* The plaintiff must prove that the defendant breached the duty of care. A breach occurs when the defendant fails to meet the standard of care required;
c. *Causation.* The plaintiff must prove that the injury was caused by the defendant's breach;
d. *Damages.* The plaintiff must prove that they actually suffered some harm.

5. Indiana recognizes the tort of Intentional Infliction of Emotional Distress (IIED) under common law. There is no statute expressly defining IIED. A tort of IIED arises when a defendant (1.) engages in extreme and outrageous conduct that (2.) intentionally or recklessly (3.) causes (4.) severe emotional distress to another.

6. Elements – Intentional Infliction of Emotional Distress: Plaintiff claims Defendant intentionally inflicted emotional distress. To recover damage for the intentional infliction of emotional distress, Plaintiff must prove by the greater weight of the evidence that:
   a. The Defendant, by extreme and outrageous conduct, intentionally or recklessly, caused severe emotional distress to the Plaintiff.
   b. The Defendant intended to cause emotional distress or acted with a reckless disregard for the high probability of causing it.
   c. The Defendant's behavior was so extreme and outrageous that it is considered intolerable in a civilized society. This is more than just being mean, unkind, or unfair; it must be a severe and egregious act.
   d. There is a direct causal link between the Defendant's extreme conduct and the Plaintiff's emotional distress.
   e. The Plaintiff must have suffered severe emotional distress that is significant and debilitating.

7. Objections—Ruling on Evidence: Lawyers have a duty to object to evidence that they believe has not been properly offered. You should not be prejudiced in any way against lawyers who make these objections or against the parties they represent. If I have sustained an objection, you must not consider that evidence and you must not speculate about whether other evidence might exist or what it might be. If I have overruled an objection, you are free to consider the evidence that has been offered.

8. Prior Sworn Statements: If you find that a witness made an earlier sworn statement that conflicts with the witness's trial testimony, you may consider that contradiction in deciding how much of the trial testimony, if any, to believe. You may consider whether the witness purposely made a false statement or whether it was an innocent mistake; whether the inconsistency concerns an important fact or a small detail; whether the witness had an explanation for the inconsistency; and whether that explanation made sense to you.

Your duty is to decide, based on all the evidence and your own good judgment, whether the earlier statement was inconsistent; and if so, how much weight to give to the inconsistent statement in deciding whether to believe the earlier statement or the witness's trial testimony.

9. Evidence – Direct, Indirect, and Circumstantial: Generally speaking, there are two types of evidence from which a jury may properly find the facts. One is direct evidence - such as the testimony of an eyewitness. The other is indirect or circumstantial evidence - circumstances pointing to certain facts. As a general rule, the law makes no distinction between direct and circumstantial evidence but simply requires that the jury find the facts from all the evidence in the case: both direct and circumstantial.

10. Law to the Court; Facts to the Jury: The judge will instruct the jury on the law. The jury will decide the facts in the case. You are the sole and exclusive judges of the facts of this case, of the credibility of the witnesses, and of the weight and value of their testimony. It is not proper that the Court comment upon the testimony, but it is proper and necessary that I point out to you certain applicable principles of law.

11. Credibility of Witnesses: The jury alone judges the evidence, including the credibility of witnesses. You are the sole judges of each witness's credibility. You should consider each witness's means of knowledge; strength of memory; opportunity to observe; how reasonable or unreasonable the testimony is; whether it is consistent or inconsistent; whether it has been contradicted; the witnesses' biases, prejudices, or interests; the witnesses' manner or demeanor on the witness stand; and all circumstances that, according to the evidence, could affect the credibility of the testimony.

    If you find the testimony to be contradictory, you may try to reconcile it, if reasonably possible, so as to make one harmonious story of it all. But if you can't do this, then it is your duty and privilege to believe the testimony that, in your judgment, is most believable and disregard any testimony that, in your judgment, is not believable.

12. Sympathy: Your verdict must be based solely on the evidence in the case. You must not be governed by prejudice, sympathy, or any other motive except a fair and impartial consideration of the evidence. You must not, under any circumstances, allow any sympathy that you might have for any of the parties to influence you in any way in arriving at your verdict.

    I am not telling you not to sympathize with the parties. It is only natural and human to sympathize with persons involved in litigation. But you must not allow that sympathy to enter into your consideration of the case or to influence your verdict.

13. Exhibits/Court Rulings: During the trial the parties may offer exhibits into evidence. The judge will decide whether to admit the exhibit as evidence. When an exhibit is admitted, members of the jury should examine it carefully without comment while in the courtroom.

14. Conduct of the Trial: Each attorney will have an opportunity to make opening statements. Opening Statements are not evidence. Each side will present evidence and call witnesses. Each side may also offer documents and other exhibits as evidence. When the evidence is completed the attorneys will make final or closing arguments. The closing or final arguments are not evidence. Each juror may accept or reject the closing arguments.

15. Opinion, Expert Skilled Witness: Generally, a witness may not express an opinion. However, a witness may be permitted to express an opinion because of his/her knowledge, skill, experience, training, or education.

16. Pain and Suffering: Plaintiff does not have to present evidence of the dollar value of the pain, suffering, and/or mental anguish. These types of damages need not be proven to a mathematical certainty. Plaintiff must prove the nature and extent of these types of damages. The dollar value, if there is any, is left to the judgment of the jury.

17. Principal and Agent: If within the scope of the Agent's authority, the Agent wrongfully acted or failed to act, the Defendant is liable for the action or inaction.

18. Inadmissible Evidence: Testimony or exhibits that are not permitted to be admitted into evidence must not be considered in determining the verdict.

**WITNESS STATEMENT: TERRY SMITH**

My name is Terry Smith, and up until a couple of months ago, I was a Senior at Midville High School. I have an older brother and a younger sister, which makes me the typical middle child. My brother is 2 years older than me, made straight A's in High School, and earned a full-ride scholarship to college. Along the way, he was on a team that won the State Spell Bowl and a team that came in second in an Academic Decathlon Competition. While I do alright in classes, I can't tell you how many times my teachers have compared me to my brother and acted surprised that I didn't do as well as he did academically. Academics were never my thing. I barely get by. My sister is 2 years younger than me and is great at sports. She's already been offered a full scholarship to play basketball in college. Sports were never my thing either. I'm a bit of a klutz, but I have been working to improve. I'm pretty good on the dance floor, though! While I'm proud of both of them, it can be frustrating at times when you feel like you never quite measure up.

I want to go to college, and my parents are really pushing me to go to college, but honestly, they can't afford to pay for it. I always knew I wasn't going to get an academic or sports scholarship, so I needed to find another way to pay for college. My dream for as long as I could remember was to be an actor on Broadway. Knowing this is a cutthroat industry, and I might not initially earn much money, I didn't think borrowing money for college was a realistic option. I couldn't stop thinking that I would be a real disappointment to my parents if I weren't able to find a way to attend college. I thought I had found a way to go, but after the *Cats* disaster, I may be out of options. Before talking about that night, let me give you some background on how I got to the point of having a scholarship to Juilliard within reach, only to have the rug pulled out from under me.

While my brother was reading books and my sister was doing her sports thing, I was always clowning around. My parents said I was dramatic from the day I was born. They said I sang almost more

than I talked! I love singing, I love acting, and I love performing in front of others. In middle school, I attended summer theatre camps at North Central High School in Indianapolis. I learned how to act (as much as you can at that age). Musicals were my favorite. In sixth grade, I played the lead role of Flounder in *The Little Mermaid Jr*. In seventh grade, I played the lead role of a Who in *Seussical Jr.*, and in eighth grade, I played the lead role of Zazu in *The Lion King Jr.*

High School was an even bigger stage with greater opportunities. My freshman year, I was absolutely shook to be cast as the Narrator in *Joseph and the Amazing Technicolor Dreamcoat*. As a freshman! The next year, I played the White Rabbit in our production of *Alice in Wonderland*. And as a junior, I earned the role of the Leading Player in our production of *Pippin*. My solo performance of "Glory" brought down the house! So many people told me it was the best performance they'd ever seen by a high school student.

As a junior, I was approached by one of our school's mock trial teams to see if I was interested in playing the role of a witness. It was another opportunity to act, and I couldn't pass it up! We had a 7-member team. Honestly, it was kind of cool to be part of an academic team. For the first time, I could kind of identify with my brother and sister. Pat Putnam was our coach and was a big-time local attorney who had a lot of suggestions for the team. Pat was no-nonsense and could be a bit overbearing. Pat kept telling us we needed to work harder and to sacrifice more "for the team." Pat had no chill at all when it came to winning. I got it, but I thought it should also be about having fun. Anyway, I was used to working with directors who were extra, so I really didn't have a problem with Pat.

As a team of juniors, it was expected that we would come in behind our senior team, but we did better than expected. We won the regional competition and went on to win the state competition. We competed at Nationals, and to everyone's surprise, came in third place in the entire country! We absolutely slayed, and it was a great experience, but I have to say it was a bit exhausting. One of the challenges was that I was competing in the Mock Trial Competition at the same time we were rehearsing

for the musical. I was not getting a lot of downtime, but it was worth it. Coach Pat told me I was instrumental in the success of our team. I won Best Witness awards at the regional, state, and national levels!

After our top three finish in the nation, our mock trial team got together to discuss our plans for senior year. The rest of the team was really excited about the possibility of repeating as state champions with the goal of winning the national competition. Coach Pat said we had the ability to hit that goal, but that it would take even more work as seniors to get there. We all agreed that we would put in the effort to improve our team and to work toward a national championship. I really thought I had found not only an amazing group of teammates, but a close group of friends, too. We were all very supportive of each other. I was looking forward to working toward a national title.

We started preparing for mock trial in August of our senior year, meeting as much as 6-7 days a week. When the mock trial case came out in October, I was disappointed that it was a civil case. Low-key, the roles were kind of mid and didn't seem very exciting or challenging. About the same time as the case came out, it was announced that our high school's spring musical was going to be a production of *Cats*. I don't care what anyone says, I stan *Cats* and have for as long as I can remember. My theatre teacher, Bays Sanchez, told me that, after my performance in *Pippin*, I was a shoo-in for the lead role in *Cats*.

In October, I started working with the mock trial team on the new case. In December, I auditioned for *Cats* and was cast in the lead role of Old Deuteronomy – a wise and benevolent elder of the Jellicle cats. The character is revered and deeply respected by the rest of the tribe. The role has a show-stopping number in the second act called "The Moments of Happiness." The song sets an almost spiritual tone for the entire production, and it reinforces the themes of memory, time, and community. The role of Old Deuteronomy is a central role in the production and would really allow me to shine. I would be walking in the footsteps of acting GOATs like Ken Page and Dame Judi Dench!

But even more exciting was the fact that my theatre teacher had contacted a good friend at The Juilliard School and asked this friend to come see the show. Juilliard is in New York City and is one of the most prestigious performing arts schools in the world. It is known for its rigorous training programs in music, dance, and drama. With my teacher's help, I sent in an audition video, and the Juilliard rep said it was "impressive" and she was excited to see me perform for a chance at a scholarship. This was about to be so lit!

I really wanted to do both mock trial and the spring musical again this year, like I did the year before. But I began to realize that doing both *Cats* and the mock trial was unfortunately going to be too much. Since my future was in theatre, I decided to quit the mock trial team and put all my focus on the musical. It was a tough decision, but it was the best decision for me. Since the mock trial roles were not very complicated, I thought it would be easy to find someone else to take my place on the team. I guess I knew my mock trial teammates would be disappointed, but I never expected them to crash out like they did.

On January 5th I told Coach Pat I was withdrawing from the mock trial team. Coach Pat told me that I was hurting the chances of the team, that I was not a good teammate, and that there were consequences for "letting the team down." I did not expect that from the coach. I would have thought Coach Pat would have been more supportive of my decision.

Almost Immediately, it was as if I did not exist to the mock trial team. When they weren't ghosting me altogether, they were "accidentally" brushing against me in the hall and saying and "quitter", "NPC", or "loser" under their breath. I came to school one day, to find the word "quitter" on my locker. I remember it was January 17th because it was my birthday. It ruined my 18th birthday. I know Coach Pat knew what was going on, but I guess they thought those were just the consequences for my decision.

I couldn't escape the harassment. A week later, some of the kids in the musical came up to me and asked if I was going to quit on them, too. They said they heard I was super sus and not a team player. I tried to tell them that was cap and they could trust me to keep my commitment. The mock trial team was making my life absolutely miserable. I was having a hard time concentrating on my role in *Cats*, and if I couldn't give my best performance, there was no way I was going to get that scholarship to Juilliard.

I did have to clap back a little bit at my mock trial teammates. I told my friends that the team had been lucky to get to the nationals as juniors and that they wouldn't have gotten there without me. It probably wasn't cool of me to say, but I was hurt by how they were treating me. I wasn't sleeping well, and it was taking its toll. I talked to my best friend, Blue, about what I was going through. Blue noticed the treatment and said I shouldn't have to deal with the bullying. Blue told me to talk to my theatre teacher. I did. A couple of days later, Bays told me that the matter had been taken to Dean Green. Bays said they had informed the Dean in writing on January 26th and would follow up with an in-person conversation. I hoped that would take care of the problem, but it didn't. I continued to be either ghosted or bullied by my old team and not trusted by my new castmates.

On February 5th, Coach Pat assured me that they had talked to the team and told them to cool it, that my decision was for me to accept, and that the team had moved on. But I think Coach Pat's talk, if there was one, only made my old teammates more salty – and sneaky. The harassment didn't stop; It just moved online. On February 12th, three weeks before opening night of *Cats*, Blue sent me screenshots of a few social media posts that someone had shared with them. These posts were mostly just attacking the musical *Cats*. They were posted by burner accounts, but it was obvious my old mock trial teammates were behind them.

About a week later, on February 19th, I was in math class when I got a notification on my phone that I'd been tagged in a post. It was again posted anonymously, but this time there at the bottom was my social handle, @TerrySmith. I got tagged in two more posts that day, and they were even more

personal this time, calling the talent of the cast into question. These posts had hundreds of likes, too. I just laughed in front of everyone, but it cut deep. I couldn't believe that the mock trial team was trying to ruin my chance at a scholarship. Those posts created a lot of anxiety for me. I couldn't figure out why they would be so cruel. The mock trial team had found a good replacement for me. Why couldn't they just move on?

As opening night approached, I thought things couldn't get worse, but they did. The morning of opening night on March 5th, I was tagged again in a series of social media posts, this time absolutely trashing my performance specifically. And these posts were going viral. There were thousands of likes and hundreds of comments and shares. It felt like the entire town was laughing at me. I was humiliated and devastated. And it really got in my head and made me question myself and my performance. I had typical nerves for opening night, but this pushed me over the top. I literally broke down in tears. Blue tried to help. So did Bays. They told me to just shake it off – but that's easier said than done.

Surprisingly, I was able to pull things together and get through Act I. I was pretty proud of myself considering the circumstances. But at intermission, I saw my former mock trial teammates, and they all made the "loser" sign at me. They pointed and laughed. They did this in front of the Juilliard representative. They knew what they were doing.

All my anxieties came crashing down on me. When I got to my ultimate showstopper number, "The Moments of Happiness", in Act II, I literally froze on stage. My mind went blank. Before I knew it, two of the other actors on stage were dancing toward me and twirling me off the stage. I was replaced by my understudy! I recovered, but not before I saw the Juilliard representative get up and walk out of the theatre. The Juilliard representative said something to Bays as she walked out. I found out later she told Bays that Juilliard would not be a good fit for me – that I would always be an amateur. She said, "If Terry couldn't take the pressure of a high school production, how could they possibly hope to perform on Broadway?"

In a moment, my dreams were shattered. The worst part is that besides Juilliard, I had visited a couple of other schools. I had an interview scheduled with the Dean of the Sargent Conservatory of Theatre Arts at Webster University in St. Louis. The interview was scheduled for the week after the school musical. I was too depressed to get out of bed, let alone go to that interview. I couldn't pull it together to follow up on any of my other options. I was cooked. My opportunity to attend college was gone. All of this was taken away from me by Pat Putnam and the mock trial team.

I just couldn't go back to school. I asked my parents to request a remote placement for me to finish out the school year. I can still see the shame on their faces. My brother is constantly asking me how I'm doing. He's being supportive, but I can't stand the pity. I'm so behind. I only applied to colleges with strong theatre and performing arts programs. Several had already offered me scholarships. But I needed to maintain my 3.6 GPA to get those scholarships. I just couldn't focus on studying. I couldn't sleep. I missed tests. No one wants me now. What am I going to do? My parents can't afford to send me to college. I'm too late to fill out all the necessary financial aid applications. I fear my life is over at 18 years old.

**WITNESS STATEMENT: BAYS SANCHEZ**

If anyone had asked me as a kid what I wanted to become when I was older, a theatre teacher would have been my go-to. Odd to know that from the get-go, right? Not for me! As a child, I loved the stage. The drama, the characters, and the imagination that would go into a production were enchanting. I had portrayed several characters, on and off the stage. I was a bit of a wild child, as you can imagine, always looking for my next acting project. I didn't shy away from the small roles either; I just made whatever I was given into my own main act. And when I grew up, I just wanted to give the gift of this world to other people, especially the kids, show them the magic of the theatre world, and teach them everything I knew so they could become the big and bright stars I knew them to be.

I understood that you can't make it on your own in this acting world, and especially as an underprivileged student, you need a strong support system on your side. My parents weren't the greatest supporters of my career choice. Coming from a family with not a lot of opportunities, they wanted me to have what you would call a more "stable" or "traditional" career. But I just could not let this passion of mine go. I just knew that this was what I was meant to do. But being the eccentric theatre kid came with its challenges, including being on the receiving end of my fair share of bullying. With no help or encouragement from my parents, my teachers became my only support. They would give me extra time during breaks to rehearse, sit with me in class if no one else would, or if the two friends I had were off doing their own thing, and counsel me on schools and career choices I should be looking at after graduation. They had nurtured and protected me, and one day I hoped to give back what they had given me.

After I graduated from Midville High School, I went on to be accepted as a scholarship student at The Juilliard School, a little-known school in New York City you may have heard of. This was a massive opportunity, and I could not believe that I was going to be getting an education from such an institution.

I mean, the best of the best were at this school! And as you can imagine, it did not disappoint. Needless to say, it opened me up to so many opportunities that I could not have imagined for myself. After Juilliard, I went on to teach at NYU for a few years but kept wanting more. There was something beckoning to me, a calling. So after almost 10 years in New York, I packed up and came back home, back to my high school, my calling. I just knew that there was untapped talent here waiting to be unleashed.

The school welcomed me with open arms. There had been a few changes since I graduated, a few new policies and whatnot, but not all that much had changed. Midville is in a diverse community. You see kids from all walks of life. But that was the great thing about it. Everyone just blending, going about their day, hoping and dreaming, and working towards their next big thing. But alas, as humans, we have our pits and falls.

The theatre world can be dramatic, and having gone to Juilliard and lived in NYC, I've seen my fair share of drama on and off the stage. But it's the same everywhere. There have been a couple of instances of bullying since coming back to Midville that went far enough for me to report them to the Dean, but nothing that had come close to what happened to Terry. Just to back track before I go into the details of this particular incident, any time a student reported bullying to me, I took it to the higher-ups immediately, as I was trained to do. My experience had always been that bullying was dealt with swiftly, with the perpetrators eventually being suspended or even expelled. Every time I have dealt with bullying, I have hoped it would be the last time. The school should have a zero-tolerance policy on bullying. But unfortunately, my star student, Terry, had to learn the hard way that there were still bullies among us at Midville High School.

Terry walked into my theatre class, not the student you'd expect. The theatre kids shone on stage, but my kids were a little bit of a timid and stay-to-themselves kind of a group. Not Terry. Terry was as exceptional off stage as they were on. Terry had a drive that fueled them just like I did. When I heard Terry's background, I could more than relate. I was an only child, so I could only imagine the added

pressure of being a sibling to two star students. The pressure must have been unbearable. But when Terry walked onto that stage, it was magical. Terry could easily transform into any character they wanted.

It is quite rare for a freshman to be cast in a lead role in the musical, but there was no one else I could have imagined taking on the role of the Narrator in *Joseph and the Amazing Technicolor Dreamcoat* during Terry's first year here at Midville. And Terry's talents just grew from there. Of course, this was not just raw talent. I saw Terry working hard all hours of the day, at every break in the theatre room, practicing for the next big role. As I saw Terry's passion grow, I started talking to other teachers, and some of them pitched in and helped Terry out with their academics so they could keep up between rehearsals. Word must have spread, because eventually Terry was recruited by the mock trial team.

I knew Pat Putnam, the coach of the mock trial team, had had their sights set on Nationals for a while, and I was a little concerned at first about Terry joining the team. I knew how hard Coach Pat worked their team, and it was grueling for these kids to prepare for the competition. Trust me, I am no stranger to hard work, what with having gone to Juilliard and having lived in NYC, but even to me, this was no joke. I always thought Coach Pat was just trying to live their own dream of winning a national championship through these kids. As you can probably tell, I was not a huge fan. We came from very different backgrounds, and I don't think Pat understood that not all the kids were as passionate about what Pat wanted. Pat ran a tight ship, and I felt like the kids had to go along with it. Pat was also on the Midville school board, and there was talk about how Pat's family had made some sizeable charitable donations towards the school library and auditorium, so Pat had sway with a lot of the people at the school.

But coming back to it, my concern was Terry. Terry fit right in with the mock trial team, and of course, took like a fish to water in their role as lead witness. Terry just had that flare for the dramatic. I had no doubt that it would be perfect for Terry. The team went on to win Regionals, then State, and

came in third at Nationals. I was ecstatic to hear that Terry had won Best Witness in all three stages of the competition! Again, I had no doubt in my mind that Terry would shine. Terry was a star.

Just a few months after Nationals, they were right back into the swing of things, starting up practices again in August. Coach Pat was now so close to getting that national championship win. Terry was juggling classes, theatre, and mock trial, but Terry seemed to be able to keep up. In November, I announced that *Cats* would be the spring musical. We had auditions for *Cats* in December, and of course, Terry was cast in the lead role of Old Deuteronomy, a very demanding role, but one that promised to showcase their talents in a big way.

I had a roommate from my Juilliard days back in NYC, who now worked in the admissions office at Juilliard as a scholarship coordinator. She was aware of Midville's reputation for excellence in performing arts, having of course seen me perform at Juilliard, and having followed me on Facebook and seen snippets of our performances over the years. Every spring, she did a tour of high schools to see student performances and hand out scholarships to talented performers. I had nominated a few students over the years, and those nominations had resulted in several full-ride scholarships. This year, I just knew she had to see Terry perform. I helped Terry put together an audition video, which we sent to my friend. She responded right away that she was very impressed and excited to see Terry in *Cats*!

With *Cats* being a huge production, and with the high stakes of having a Juilliard scout in the audience, I was going all in with the rehearsals. We even rehearsed over the holiday break. By the first week of class in January, it was becoming evident to Terry that they could not realistically keep up with both the mock trial and the spring musical, and they would have to choose. I let Terry know that it was their choice and they should do what was right for them, but that if they were interested in a career in the performing arts, a scholarship to Juilliard was just the kind of opportunity that would set them up for life. Much to my relief and to Coach Pat's dismay, Terry chose the musical.

Then one morning towards the end of January, Terry came to me all red-eyed. I thought it may have been the stress or the sleepless nights, but something was definitely wrong. I had never seen Terry this way. I had known Terry to occasionally be down or stressed, but never this anxious. Terry was a class clown and could usually be counted on to keep things upbeat. Terry just burst out in tears and let me know that the harassment was too much to handle. Terry said they were being bullied by their former mock trial team for quitting, and things were even getting physical at times, in the form of pushing and shoving. The mock trial kids had also been telling Terry's castmates that Terry would quit on them, which was putting a strain on Terry's relationship with their castmates. I had to draw the line. This was unacceptable.

I immediately emailed Dean Sydney Green with an official written complaint on January 26th. Again, I always followed the proper procedure. Back in August, we all took part in a mandatory training facilitated by Fisher Educational Consulting, and Presley Fisher had sent a memo to all participants afterwards detailing this procedure. I also had a meeting with the Dean later and was told that they had talked to Coach Pat and there would be no more misbehavior from the mock trial team. Given my past experience with reporting bullying, I thought that this would be the end of it. I was wrong. It was right about that time that the brutal social media posts starting popping up in the weeks leading up to opening night. Terry sent me screenshots of all the posts, which I printed out and left in Dean Green's school mailbox. I know it can be difficult to assign blame regarding social media posts, but many of these mentioned Terry by name and even mentioned Terry quitting mock trial. I felt certain the mock trial team, and possibly even Pat Putnam, were behind them.

Opening night came, and Terry just did not look one hundred percent like they usually did on nights like this. This is where Terry normally came alive, but not on that night. I chalked it up to nerves. There had been another round of nasty social media posts that morning, this time attacking Terry's performance at the dress rehearsal the night before. I had reported the instances of the mock trial team

harassing Terry to Dean Green in writing, as required. I saw the Dean backstage before curtain and asked if the Dean would speak to Pat Putnam again. To be honest, the Dean seemed a little distracted by all the opening night backstage magic and madness, so I decided I would make another written report the next day since the problem didn't seem to have been fixed.

Act I went off without a hitch, and I could not have been prouder. I was worried after I saw a few students making "loser" signs at Terry, but I was hoping my death stare would shut it down. Clearly the Dean had not had a sit-down with Coach Pat. When Act II came around, with the students still heckling Terry from the audience and with everything else that had happened in the past few months, it all came to a head, and I saw Terry do something I had never seen them do on stage in all the years I had seen them perform. Terry froze. The orchestra played the intro to Old Deuteronomy's big solo, "The Moments of Happiness," and then you could have heard a pin drop in the theatre as Terry stood there, frozen, unable to get out a single word or note. We had to send in the understudy to finish the night out. I saw my friend from Juilliard get up and start walking towards the exit. I ran out to catch her in the lobby, where she told me she was extremely disappointed, as she had had high hopes for Terry. She said if Terry couldn't handle a little heckling at a high school musical, how would Terry handle the pressures of Broadway? It was unfortunate, but she said Terry was not a fit for Juilliard.

If only she knew it was not just about tonight, but the months of bullying and harassment, and that this was the straw that broke the camel's back. I tried to talk to Terry about what happened after the show and encourage them to finish out the remaining three performances of the run, but it was like a light had gone out in Terry's eyes. Terry was so devasted that they never came back to school. I tried to visit Terry at home to talk to them, but Terry's parents told me they did not want anything to do with Midville. My heart just breaks for Terry.

This whole situation has really taken its toll on me, too. I was supposed to protect Terry like my teachers had done for me. The school was supposed to protect Terry and did nothing. Adults like Coach

Pat were supposed to look out for Terry but were too blinded by self-interest. We have a saying in the theatre, that I learned during my time studying at Juilliard in NYC, that the show must go on. Well, it feels like the show is over for Terry.

**WITNESS STATEMENT: DR. LYNN CARTER**

My name is Dr. Lynn Carter. I am the Chief Program Officer at the Center for Student Safety and Well-Being, or CSSWB, located in Indianapolis, where I have worked for over twenty years. In my role, I oversee research initiatives, lead training for educators, and work with administrators to develop policies that protect students from harassment and emotional harm.

I earned my Bachelor of Science in Education and Psychology from Ball State University's Teachers College, which provided me with a strong foundation in both instructional practice and adolescent development. I chose this field because I wanted to better understand not only how students learn, but also how their emotional well-being impacts that learning. My coursework combined practical classroom strategies with developmental psychology, helping me see the whole student rather than just the academic side.

Following my time at Ball State, I taught for a few years at Munster High School. During my years in the classroom, I taught a variety of subjects and worked closely with students both inside and outside of class. It became clear to me that many students faced challenges that went far beyond academics. Some dealt with bullying, others with family stress, and I realized how important it was for schools to support the whole child.

Ultimately, I decided to return to Ball State University and receive my Master of Arts in School Counseling. I felt that while teaching was rewarding, I wanted to play a more direct role in addressing the social and emotional needs of students. Too often, I saw problems ignored or brushed aside, and I wanted to be the person students could turn to when they needed help. In high school, I had a particular school counselor that I could confide in when times were tough. During my master's program, I focused on school counseling practice, including student wellness, academic support, and how to intervene when

24 students reported harassment or distress. As part of my counseling training at Ball State, I attended
25 workshops on student harassment prevention and emotional wellness.

26 After completing my master's degree, I returned to Munster High School as a guidance counselor
27 for more than a decade, but I knew my calling was broader. I returned to Ball State to complete my Ph.D.
28 in Counseling Psychology. I specialized in research on school climate, harassment prevention, and
29 systemic policies that protect student emotional well-being. After completing my doctorate, I joined the
30 CSSWB, where I've spent the past two decades training schools across the country, giving seminars, and
31 developing national programs to keep students safe and supported.

32 I am not being paid to testify in this case. I agreed to testify because this case involves important
33 issues I have dedicated my career to.

34 At the CSSWB, we maintain clear guidelines for what we define as harassment, bullying,
35 emotional distress, and the difference between ordinary conflict and true harassment. When looking at
36 harassment, we at the CSSWB describe it as repeated or targeted behavior that harms a student's
37 emotional well-being or sense of safety. Bullying is a form of harassment, often peer-to-peer, that often
38 involves intimidation, exclusion, or ridicule. Emotional distress refers to the anxiety, depression, or
39 behavioral changes caused by harassment or hostile environments. It is also important to distinguish
40 conflict and harassment. Conflict is a normal disagreement, and can happen to anyone, regardless of
41 age.

42 Harassment, by contrast, is ongoing, harmful, and must be addressed quickly and decisively
43 before it causes lasting damage to a student's well-being. At the CSSWB, we often remind schools of our
44 guiding principle: "Conflict can be resolved, but harassment must be stopped." The CSSWB has
45 conducted extensive research on students across the country to better understand what happens to
46 their overall emotional well-being when they face harassment and bullying. These studies consistently

show that students experiencing harassment often show declines in academic performance, reduced participation in extracurricular activities, and significant loss of self-confidence. Students experiencing emotional distress sometimes experience what we call “break points,” moments where they either completely withdraw, or in some cases, freeze under pressure. For example, we have seen athletes who, after sustained bullying, froze or dropped the ball in critical games because of the overwhelming stress.

During my time at the CSSWB, we have compared outcomes in cases where schools respond promptly to harassment reports versus cases where schools minimize or delay intervention. When schools acted quickly, we saw students recover, regain confidence, and return to thriving both academically and socially. In contrast, when schools delay or minimize their response, the opposite occurs. In the studies observed by the CSSWB, schools that minimized or delayed intervention for students saw long-term harm and reputational damage. This is because when a school delays and or minimizes a report, it signals to both the victim and the bully that the behavior is acceptable. This, in turn, causes the behaviors to continue for a longer time than if the school had stepped in properly and taken care of the report promptly. The role of adults in this process cannot be overstated. Every adult within the school building – teachers, coaches, and administrators alike – has a duty to respond to student concerns. In fact, teachers, coaches, and administrators are mandatory reporters, meaning they are legally and ethically required to act when harassment is reported to them. When adults fail to act, the harm does not remain static; instead, it compounds, leaving the student more vulnerable.

Based on my work with schools nationwide, the CSSWB has developed what we call the Four-Step Response Protocol. This protocol is designed to ensure schools handle reports of harassment and bullying consistently, promptly, and in a way that protects students. The first step within the response protocol is Recognition. Teachers, coaches, and even administrators need to be able to identify ordinary conflict and harassment, and bullying. The recognition of the differences is important in this step,

because if staff mislabel harassment or bullying as just another ordinary conflict, students remain exposed to ongoing harm.

The second step in the response protocol is Reporting and Documentation. When a student expresses harassment or bullying, or if a member of staff observes it, the witnessing staff member must report the incident of suspected harassment or bullying. When a report of suspected harassment or bullying occurs, it should move up the chain, for example, teacher to counselor, and then counselor to a dean or other administrator. At every point, from the initial report, all the way up to the dean or other administrator, it is imperative that such a report be documented in writing. Documenting the report in writing ensures that the report is not ignored or forgotten, creates accountability at all levels, and, most importantly, creates a paper trail. If documentation or reporting does not occur, the school loses chances at critical stages to intervene before harm to the student affected escalates.

The third step of the response protocol is Intervention and Protection. In this stage, once the reported suspected harassment or bullying is confirmed as actual harassment or bullying, the school must step in to stop such behaviors from occurring. When a school steps in, they normally will take protective measures such as separating the students, monitoring social media, notifying parents, and removing opportunities for further harassment or bullying. In this stage, the focus is on protecting the affected student, not punishing them or minimizing their concerns.

The fourth step of the response protocol is Follow-Up and Support. After the intervention step, schools must check back in with the affected student to ensure the bullying or harassment has stopped. During this step, support services must be given to the affected student, such examples include counseling, peer mentoring, or academic accommodations if the bullying or harassment has disrupted schoolwork. Such measures within this step reassure the affected student that reporting was the correct decision and build trust within the system.

This Four-Step Response Protocol is consistent with national best practices for student safety and harassment and bullying prevention. Federal and state guidelines all emphasize timely reporting, thorough documentation, swift intervention, and ongoing support. At CSSWB, we train schools to adopt these measures not as optional recommendations, but as essential responsibilities for every adult in the building. When schools follow this four-step protocol, students are protected and can thrive. When schools ignore or minimize these steps, as I understand occurred in Terry's case, the harm is predictable and severe.

I have reviewed the facts about Terry's experience, having read the witness statements provided by Terry, teacher Bays Sanchez, Dean Sydney Green, and Coach Pat Putnam. Terry was a strong member of the school's mock trial team, but after deciding to leave the team and join the theatre program, Terry was subjected to bullying and exclusion by former teammates. Terry reported this to a trusted teacher, Bays Sanchez, who passed the concern on to Dean Green. Dean Green then informed Coach Pat. In order to assess the school's response, I applied the Four-Step Response Protocol.

Looking at Step One of the Four-Step Response Protocol, Recognition, Terry trusted Bays enough to share what was happening. Bays, during this interaction with Terry, properly recognized it as serious harassment and bullying, and not just an ordinary conflict. In turn, Bays' decision to listen to Terry and then escalate was consistent with national best practices.

Moving on to Step Two, Reporting and Documentation, Bays followed the proper procedure for reporting and reported the incident to Dean Green. Due to this report, Dean Green then informed Coach Pat. This is where knowing the difference between harassment and conflict becomes important. There is no clear indication that an analysis of harassment versus conflict was conducted. The documentation lacks details. Without those details, opportunities to intervene are missed or lost altogether.

In Step Three of the Four-Step Response Protocol, Intervention and Protection, we see that in Terry's case, Coach Pat was informed. However, despite being informed, Coach Pat simply brushed off the report of bullying and harassment as a "life lesson." This was a failure on the part of Coach Pat. However, it is unclear how effectively Dean Green stepped in to protect Terry, as Terry continued to experience harassment and bullying. In Terry's case, there is no evidence that action was taken to address online posts mocking Terry's performance, as well as the lead-up to the fateful night of the school musical *Cats*. When Coach Pat and Dean Sydney failed to intervene and protect Terry, it communicated that the harassment and bullying towards Terry was acceptable. This, in turn, resulted in the harassment and bullying continuing to occur.

Step Four of the Four-Step Response Protocol: Follow-Up and Support. In Terry's case, there is no evidence that anyone checked back in with Terry after the initial report. This is extremely detrimental, as without proper follow-up, Terry remained vulnerable and unsupported. During this time without proper follow-up and support, emotional distress continued to build, with the bullying and harassment ongoing. This is what eventually led to what occurred on the night of the school musical, *Cats*. Due to the improper following of national best practices and the Four-Step Response Protocol, Terry froze on stage. This is a textbook stress reaction, consistent with studies conducted on the emotional distress caused by harassment and bullying. Due to Terry freezing on stage, the Juilliard advisor left, which ended Terry's chances at a scholarship. All such events were a foreseeable outcome. Due to the school's minimizing and ignoring of the harassment and bullying report, it escalated into serious, lasting harm towards Terry.

No school can prevent or be aware of every circumstance of bullying or harassment. As someone who has spent more than two decades training schools and researching student well-being, harassment, and bullying response nationwide, it is my professional opinion, the school failed to meet accepted standards of care for student safety and well-being. When Terry brought forth the conversation to Bays, Bays was correct to report the ongoing harassment and bullying that Terry was facing. However, after

Bays reported the conversation, there was a breakdown on the administrative level. Even though Dean Green brought forth the bullying and harassment report to Coach Pat, Coach Pat minimized the report and did little to nothing to intervene and protect Terry. Dean Green also failed to ensure that all steps to address Terry's situation were undertaken. After the report was brought forth to Coach Pat, and even thereafter, the continuation of administrative breakdown continued. This is due to the fact that no one checked back with Terry to ensure that the bullying and harassment had ended. This failure to check back in with Terry ultimately meant that the harassment and bullying were seen as acceptable, and therefore, they continued. This, likely, resulted in Terry's emotional distress worsening, and on the fateful night of the school musical, Terry froze.

With young people, it is hard to determine what level of maturity they are at or an individual's coping skills. Many factors determine each person's reaction to stress. I am comfortable saying that the cumulative exposure to the lack of acceptance of Terry's decision to leave the mock trial team was a contributing factor in Terry's reaction on stage. If the concepts within the Four-Step Response Protocol had been more clearly demonstrated, there is a decent chance Terry may have reacted differently.

**WITNESS STATEMENT: SYDNEY GREEN**

My name is Sydney Green, and I am the Dean of Students at Midville High School. I have my bachelor's in educational studies from Indiana University and a master's in educational leadership from Michigan State University. I've been in my current role with the school for the past 5 years. Before being promoted to Dean of Students, I served as the Vice Principal, where I did everything from overseeing student discipline to managing extra-curricular activity scheduling and everything in between. I have worked my entire career in education in some manner. I always knew that I wanted to work in the academic field, specifically in high school. It is a joy to work with young students and to try to shape them into future productive members of society. Seeing them grow year after year into bright shining stars when they graduate is truly a blessing. Plus, they keep me young!

Here at Midville High School, the school has developed quite the reputation for academic and artistic excellence. We have a 99% graduation rate, and 90% of our graduates are accepted to a college of their choice. It is a source of great personal and professional pride for me. Our teams and clubs are some of the most successful in the state, often assisted by the generous giving of both time and resources by our school staff and members of the community at large. While athletics usually garner the most media attention, some of our academic and artistic programs have really shone and brought in both donations and college scholarships during my tenure as Dean. We've always been successful in art, music, theatre, and Speech & Debate. Over the past few years, we've expanded into programs such as robotics, Quiz Bowl, and even e-Sports. I've been told our NBA2K team is *quite* good, and the robotics kids are levels of manually-skilled beyond my wildest imagination.

Recently, our Mock Trial team has had great success. The school has accumulated quite a laundry list of wins at regional and state competitions. The coach of the team, Pat Putnam, is a local attorney and member of our school board who has volunteered for many years and runs a top-notch team! Most of

the students appreciate Pat's no-nonsense approach. Some parents and students may think Pat is all about winning, but winning is definitely more fun than losing. And the students would never get those exciting trips and experiences going to Nationals if they didn't win at every other stage along the way. The team was able to finish in the Top 3 at nationals last season, so clearly the methods are working.

There was a bit of a kerfuffle this year, though. I found out that one of the students from last year's team, Terry Smith, had quit the team. I saw it myself when I got the extracurricular roster form adjustment on my desk. From my observations, Terry had quite a dramatic flair and was one of the more engaging personalities of the 7-member team. You have to understand that in high school mock trial, a great witness can really bring that entertainment value that judges love. A performer like that is critical to team success.

I never like to hear about late-stage withdrawals from any of our teams or clubs. I'm old school in that belief that team cohesiveness sometimes matters more than talent, and there are certain intangibles that lead to success. However, I didn't dwell on it, as I had a school to run. So many other things day-to-day consumed my time that I honestly forgot about it pretty quickly.

One of those parts about running a school is dealing with disciplinary issues. Thankfully, we don't have too many "big" issues at Midville High School, but we do get the occasional knucklehead doing something dumb and causing problems. A couple of years ago, somebody spray-painted our statue out front, but we hadn't had anything that serious in a while. I get reports of minor bullying on a pretty regular basis, but usually nothing egregious. Midville follows the staff training and discipline procedures mandated by the Department of Education. We do mandatory training of all teachers, staff, and adult volunteers. This year the training was put on by Presley Fisher at Fisher Educational Consulting. I was there myself and can attest that Presley does a bang-up job and all our teachers were highly engaged. Presley sent us a memo after the training and that kind of became the basis of the procedure for adults in the school to follow with regards to reporting bullying.

At some point this school year, one of our teachers, Bays Sanchez, reported some alleged "bullying" going on involving Terry. Bays followed the proper procedure of notification in writing via email to me listing the nature and dates of the alleged bullying. Supposedly, Terry's former mock trial teammates were getting on Terry a bit about quitting on the team. To me, it just seemed like normal sour grapes type behavior, but I wanted to make sure there wasn't anything more sinister going on. I contacted coach Pat; I think it was a quick phone call one evening. Pat didn't know anything about the bullying, but certainly wasn't happy about Terry quitting on the team. Pat made sure I knew how disruptive the late change was. I told Pat to have a talk with the team, keep an eye on their behavior, and follow the procedures we had been trained to follow. Pat agreed to do so. I distinctly remembered Pat having been at the Fisher training, because I remembered Pat having to leave a few times to take important phone calls. The law waits for no one, I guess! So I assumed our conversation would be the end of it. I had a meeting with Bays a couple days later and assured them the matter was taken care of.

I never saw or heard of any further complaints regarding Terry and other students. Nothing ever made it to my desk. As I stated, we have anti-bullying procedures at Midville High School, which are based on best practices by a professional trainer certified by the Department of Education and hired by the board of our school corporation. If there was ever any serious physical violence reported, I would have personally investigated it. Any perpetrators would have been suspended or expelled. But like I said, I never heard any further complaints. The same goes for social media. I'm not on Twitter, or The Facebook, or TikTok, but I know students – and even many of our teachers and administrators – are on there constantly. If there were bullying posts or comments, someone should have reported them. I don't recall Bays Sanchez, who was directing the spring musical and made the initial report, telling me about any social media posts. I was only made aware of them in the wake of this lawsuit.

I do recall going to see our spring musical *Cats*. Terry was one of the leads and was always quite impressive in previous performances. As I mentioned earlier, our arts programs are world-class and the

envy of schools across the nation. I don't recall if anyone from Juilliard was at the performance, but I know they have come in the past, and we've had students receive scholarships. Bays Sanchez has connections at Juilliard. I went backstage before the start of the show to wish the kids luck – which they informed me was actually bad luck and I should have said "break a leg" instead – I really do learn something new every day from these young people! But anyway, Terry was fine. Terry thanked me, gave me a fist bump, and smiled. I also spoke briefly with Bays, but there was a lot going on, so I don't exactly recall the nature of the conversation.

Unfortunately, the show did not go well. The crowd was a bit "chatty," and there was even some laughter that seemed out of place. Maybe they were just bored? Next year we'll pick something from Sondheim instead of Andrew Lloyd Webber, and it'll go better, surely. It all came to a head when Terry just stopped on stage. I'm not sure exactly what happened, but it was a solid minute where Terry didn't sing, act, or do *anything*. I saw at least a couple of people walk out. A couple of the other cats on the stage did a dance and got Terry off the stage. Another actor, Mickey, stepped right into the role. I was proud of the teamwork, but I did feel bad for Terry.

The next day, one of our guidance counselors mentioned that there weren't going to be any Juilliard scholarships for our students this year, which was disappointing. I'm not sure if Terry's performance had anything to do with it, but it certainly couldn't have helped. No Juilliard and an uncertain future for the mock trial team. What a year!

Imagine my surprise when, months later, I received notice that we were being sued by Terry! Terry says that I knew about this pervasive bullying, that Pat Putnam encouraged it, and that, as agents of the school corporation, we did nothing to stop it. Nothing could be further from the truth! Being an attorney and a long-standing member of the school board, Pat of all people would know where the lines are drawn and absolutely would protect the reputation of the school corporation. Pat said they would talk to the team so I must believe that happened.

I want all of our students to excel, to do great things, to be happy and well-adjusted, and to bring honor and prestige to our school. All of that means better funding and better experiences for the kids. I would never knowingly put a student in harm's way or let a student be bullied. All kids are different. Some are more sensitive, some are a bit tougher, but we have procedures in place to protect *all* our kids here at Midville.

**WITNESS STATEMENT: PAT PUTNAM**

Before I get into the meat of this case, and my involvement in it, I have a question for you: when was the last time you attended a local gathering? Something like a Kiwanis Club meeting? A Rotary Club meeting? A VFW meeting? A good, wholesome bowling league? Do you volunteer at your local historic movie theater? Do you know your neighbors well enough that they would trust you to dog sit? I hope you answered "Yes" to at least one of these questions – both for your sake and for my sake. Go watch the *Join or Die* documentary on the work of Robert Putnam. It's on Netflix. It's great. I hope you understand, as I understand, that your happiness, your community's health, and our nation's civic fabric all depend upon our fostering a shared sense of connection with one another. A person must have a shared sense of commitment to a cause greater than oneself – a commitment to something that will outlive them. I really believe this to my core.

Just think about how stratified society is today. Charles Murray wrote about this in *Coming Apart*. We are stratified politically, that goes without saying. But we're also stratified culturally. The Joneses go to Cracker Barrel, the Morrises go to the restaurant with the Michelin Star – and never the two shall dine together. The Joneses watch *The Big Bang Theory* and the Morrises watch *Succession* – and never the two shall discuss. And then we're stratified economically. Think about baseball games. We all used to have the shared experience of rooting for the team, more or less the same experience with slight variation in seat quality. Now there are ten different price tiers, with the Diamond-Level seats getting you a gourmet buffet in place of the traditional hot dogs. I read an article in the *New York Times* recently that compared the wildly different Disney vacation experiences of a school bus driver and a tech executive. Disney has so mastered the art of tiered pricing that a rich parent can now pay to have his child skip the lines, get sequestered meals, and benefit from tour guides. The rich can basically use their

money to never encounter a poor person again. Cradle to grave: private birthing facilities, private schools, private vacations, private jets.

To be clear, I know how the other side is going to portray me in this litigation. I know litigation. I started out as a young lawyer in the Federal Trade Commission. I was placed in the Mergers IV Section of the FTC that investigates and litigate anticompetitive mergers and acquisitions in the healthcare space. I did it all, hospital mergers, pharmacy benefit managers or PBM's, and drug companies. I learned the ins and outs of all of those businesses and their respective business models. The directive from my boss was to litigate and win. S, that's what I did. I eventually expanded beyond healthcare and into key cases for the FTC and later for the Department of Justice. I was one of the lead lawyers in the Microsoft antitrust case in the early 2000's. It is widely considered one of the foundational antitrust cases of our time. Needless to say, when I decided to leave government practice and head to private practice, I seemed to be a popular person. I ended up going to King & Balding LLP, which is a top 15 global elite law firm.

So back to this case. They'll say I'm the rich law partner who turned a blind eye to bullying. They'll say I'm the mock trial coach who's maniacal about winning, to the detriment of the mental health of the students. Yes, I'm rich. I built my regional antitrust law practice from the ground up, and I'm proud of it. I inherited wealth (my paternal great-grandparents together launched a string of very successful companies: HVAC, contracting, plumbing, and electric). But I also made my own money by selling something – legal services – that people wanted. And here's something the other side won't tell you: every single one of my fellow equity partners lives in a gated community, whereas I have chosen to live in a mixed-residential neighborhood that's socioeconomically diverse. I know my neighbors beyond just the occasional handwave. I go to a church that has kids from multiple schools – public and private. And I volunteer at the nonprofit historic local movie theater down the street in the town square, *Mo's Theater*, once or twice a month, filling popcorn concessions. I also understand that community may look a little different in the 21st Century than it did in bygone eras. So I'm also active in the Midville parent "chatter"

48 group on Facebook and I follow all the school's teams and clubs on Instagram. I'm no dinosaur and I'm
49 no plutocrat.
50 Also, yes, I'm committed to coaching mock trial. And I've devoted close to 10,000 hours in my
51 lifetime to doing so, mentoring kids in the Indiana program. But I have not committed that much time to
52 mock trial so that my students win. I have committed that much time to mock trial because my students
53 learn life skills that will help them be a part of the community. They learn how to listen to one another,
54 work with one another, and disagree with one another. Timmy learns when he ought to let Susan take
55 the lead, and Susan learns when Timmy has a unique skill to offer the team that she lacks. I'm not
56 maniacal about winning; I'm maniacal about life lessons. The winning is a byproduct that arises when my
57 students learn what it means to be good future citizens and act like it.
58 I bring all this up to say, I care a lot about the social fabric, how that fabric is fraying in the
59 twenty-first century, and how I might reinvigorate the idea that we are all Americans, all members of our
60 community, and all on a shared journey together. I want to take the kid that would otherwise be an
61 individual atomized unit, sitting alone in their room laughing at memes, and put that kid in a place where
62 they learn and grow and work for a team, both because it is good for the kid and good for our shared
63 future.
64 Alright, now I'll turn to this case. I'm going to go in chronological order, because I think that's the
65 best way to tell the truth of what happened, or at least the truth as I understand it. As I referenced
66 before, I'm the coach of the mock trial team at Midville High School. Fifteen years ago, Dean Sydney
67 Green reached out to me and asked me to serve as a coach, and I said yes. I had gotten to know Sydney
68 as a member of the school board, a position that I was first elected to in 2008 and that I have held to this
69 day. Sydney thought I'd make for a good mock trial coach because I had cut my teeth as an antitrust
70 lawyer and done well for myself. I said yes to Sydney's offer, and I've been coaching mock trial ever since

2010. Over that time, I've seen our team win five state championships. We've never (yet) won a national championship, but one of these days, I'll catch that white whale.

Coaching mock trial has been one of the most profoundly rewarding parts of my life. Honestly, after marriage and parenthood, it is probably the thing that I am most proud of. I see kids who are scared to so much as recite the alphabet in front of a crowd go on to give a gripping extemporaneous closing argument in a standing room only courtroom. The students learn about the law, and a lot of my players have followed in my footsteps and gone on to be lawyers themselves, but they also learn self-confidence, analytical thinking, and loyalty. I can't think of a better extracurricular activity to get involved in during high school.

Last year, we had a particularly special experience. A team of juniors came together like nothing I had ever seen in my fifteen years of coaching. We start mock trial practices in August, before even the Indiana Bar Foundation releases the case in October. At the start of the season, the overwhelming expectation was that our senior team would turn in the star performance that year. I mean, they were the oldest and most experienced. But to everyone's surprise, the juniors absolutely crushed it at regionals, winning the whole thing.

After that, I knew that I might have a powerhouse on my hands, and I added a new practice to the schedule: we began to meet every Sunday afternoon to discuss strategy. We also pioneered something called "Opening Statement Slaps," whereby our witnesses would listen to the opposing attorney deliver their opening statement, wait for them to say something the witness could rebut or disavow later, and then, during that witness's testimony, the witness would actually make reference back to the opening statement. Sometimes a witness would quote a line from the opposing attorney's opening statement verbatim, only to rebuke it, and you could see the opposing attorney's eyes go wide in real time. Judges loved it.

With the time put into these practices, the team really started to bond. The camaraderie was heartening to witness. The team of seven grew really close and started to plan social activities outside of practice, which I encouraged. I think they went to a theme park on the weekend, played laser tag, and had movie nights. I know Terry was an active participant in all this.

And it makes me sad but simultaneously proud to say it: Terry was an absolute star witness. It became clear during our practices. Terry came up with the idea for Opening Statement Slaps, and Terry had an unbelievable knack for implementing them. And then, when it came to embodying a character, Terry could transform into an entirely different person up there on the stand, like a modern-day Meryl Streep or Daniel Day-Lewis in the making. Terry also could sense when to give *just enough* of an answer on cross-examination to invite opposing counsel to ask that "one question too many" – after which, of course, Terry would always spring the bear trap closed with a whammy of an answer.

Terry had won a Best Witness award at the regional tournament. When the team went on to win the Indiana state championship, Terry won the Best Witness award during the final round. I was not in the least surprised. The team went on to nationals and came in third – third! That's the best I've ever had a team do. And, once more, Terry won a Best Witness award during the semifinal round.

You can understand how the students and I were ecstatic to start this year's mock trial case. We had, for the first time ever, a fully returning team that had just placed third in the nation. The road was paved for us to win the national championship. Then Terry came to see me after practice one day in January, just a few weeks before our regional competition on February 22nd. "I've decided to quit the team," Terry said. Shocked, I asked why. "I have to look out for my future," Terry said. "I'm meant to be an actor. Mock trial is fun and all – and I like all of you, I really do. But I want to be a star, and that means doing everything I can to get into Juilliard."

I was shocked. I told Terry that I understood, and I let them go. But I won't mince words: I was very angry. I saw it as a clear dereliction of Terry's duty. Terry quit on the team. There's no sense in

118 describing it differently. For context, during their junior year, Terry's six teammates had met for practice
119 every Tuesday and Thursday for two hours, every Saturday for three hours, and every Sunday for one
120 hour – for about six months. I like math: that's eight hours a week for twenty-four weeks equals 192
121 hours. That's a huge sacrifice on their part. By the time Terry quit in January, Terry's six teammates had
122 each devoted over a hundred hours. Not to mention that Terry dropping out really put the team in a
123 logistical grinder. Indiana Mock Trial requires a minimum of seven people per side (seven for the plaintiff
124 side, seven for the defense side) because each side must have three attorneys, three witnesses, and one
125 timekeeper. By quitting, Terry dropped our total number from seven to six, which meant we would have
126 to find a replacement right before the regional competition. Let's just say that there was a reason Roger
127 Federer never changed his forehand a week before a Slam.

128 I am aware of what happened to Terry afterward, and my heart truly goes out to them. I don't
129 think any young kid deserves to go through a traumatic experience, live, in front of a college recruiter, no
130 less. But as for the pranks, the name-calling, the cold-shoulders, and the shoves: well, that's just good
131 old-fashioned consequences, in my book. What did Terry expect? Terry abandoned the team. Is it any
132 surprise that Terry would face fallout as a result? This isn't bullying: this is socialization in action. Kids
133 need to learn the importance of loyalty and mutual commitment.

134 We all need to understand that different kids have different levels of intestinal fortitude. I'd
135 known Terry for over a year, and believe me, Terry could dish it out as well as anyone else. When Sydney
136 mentioned to me that Bays Sanchez had filed a complaint regarding the mock trial team and Terry, I
137 assumed that any type of required investigation of the situation was being handled according to
138 appropriate procedures. I remembered hearing something about these procedures at a training back in
139 August that I attended on behalf of the school board, although I'll be honest, I was right in the middle of
140 a huge case at the time, and was in and out of the training juggling some work calls. But I got the gist of
141 it and saw the memo after the fact. Anyway, Sydney asked me to speak to the mock trial team and I did. I

might have scrolled past a few of the social media posts that Terry alleges were posted by my mock trial kids, but I didn't recognize any of the handles and just assumed they were some kind of viral marketing campaign for the musical, or that Terry had even posted them themselves for attention. I don't really get how kids these days use social media, but I do know Terry can be dramatic.

I spoke earlier about the importance of community, about the importance of having a shared sense of purpose, and about how our social fabric is fraying. It might sound dramatic, but I think Terry's decision typifies much of what ails society today. The scholar Yuval Levin, for example, has discussed how people today use institutions as platforms. They get whatever they can out of an institution and then discard it, rather than venerate that institution and work to sustain it. That's basically what Terry did. Terry joined the team, won awards, and then, as soon as Terry found a new platform upon which Terry could shine, Terry left. Terry didn't think about how it might affect their teammates. Terry didn't think about how it might affect me. Terry didn't think about how it might affect the school to deprive Midville High School of the chance to win a national championship for the first time ever. Terry just thought about what would be best for Terry. If Terry gets a little guff from their teammates in response, well, then that's a lesson well learned, as far as I'm concerned.

I also heard that the director's friend from Juilliard acknowledged that Terry wasn't Juilliard material. I'm not responsible, and the school's not responsible, for anything Terry is going through. I can't believe this lawsuit. I think before everyone decides to blame the hardworking people who support and maintain a school system, they should also look at what is going on at home. Terry comes from a family of overachievers. That's where any shame comes from. I'm sorry the poor kid is embarrassed, but Terry got to be a big fish in a little pond junior year with mock trial and the play. It's too bad Terry's senior year didn't go as well, but that's life.

**WITNESS STATEMENT: PRESLEY FISHER**

You know, it's funny how these things work. Yesterday I was just snowboarding in Colorado Springs, Colorado, and next thing you know, I'm on a plane headed back to Indiana to give my witness statement. I mean, it truly is absurd. But at any rate, my name is Presley Fisher, and I have been brought in by the Midville Community School Corporation. I am being paid to testify as a witness in this case, but it's my pleasure, really. The Midville Community School Corporation has brought me in in the past and kept me on while utilizing my services to train teachers and administrators within the school corporation on managing threats, emotional distress, and harassment within schools.

I hold a Bachelor of Science from Indiana University in Secondary Education, and I began my career in my hometown of Greensburg, IN. I began teaching at Greensburg High School, where I taught high schoolers for around a decade. During that time, I taught a wide range of subjects, from social studies to business. I won't lie, business classes were always my favorite to teach. Just something about business that called my name at the time. However, daily, I would see a student or a few students being harassed or bullied for no reason. I would try to stop such behavior if it occurred in front of me. However, I wasn't always successful. Over time, my love for teaching diminished, and I decided it was time to head back to my old stomping grounds of Indiana University Bloomington, where I received a Master of Science in Higher Education & Student Affairs Administration. I really enjoyed my time learning about all the different ways that bullying and harassment could be prevented and stopped. After I graduated, my lovely dog, Hoosier, and I decided it was time to head back to Greensburg, where I started in my role of Vice Principal for Student Affairs & Conduct. I stayed in this role for around five years, and during such time I received continued education in management of threats, emotional distress, and harassment within high schools through Indiana University. After a while, though, I began to want a new adventure, something new for me and Hoosier.

25 After leaving Greensburg High School, I started my own company, Fisher Educational Consulting,
26 LLC. Currently, I am the Founder and Chief Executive Officer of Fisher Educational Consulting. At Fisher
27 Educational Consulting, we are brought in by school corporations from around the nation, but mostly
28 from the Midwest. We train teachers and school administrators, especially high school teachers and
29 administrators, about how to properly manage threats, emotional distress, and harassment. This is
30 normally done by an in-person initial orientation, where my staff and I come in and have a full day of
31 teaching the teachers and administrators. Funny, I know, but it is important that teachers and
32 administrators are present and learn about these situations. After the initial orientation and presentation
33 given to the administrators and teachers, I will normally send out a memo about what occurred during
34 that presentation. This is so that teachers and administrators who weren't able to attend the
35 presentation and orientation can still have access to the information that we went over. Sometimes
36 these memos will become the procedure of the school, or will be taken into consideration for procedure
37 by the schools we go to. In this case, with Midville High School, my understanding is that the procedures
38 outlined in my memo are more or less the official standard.

39 With Midville High School, my role was that of a consultant. I was brought in specifically to teach
40 the teachers and administrators how to properly handle and manage threats, emotional distress, and
41 harassment within the high school, in compliance with the Indiana Department of Education
42 requirements. I set up the training events like I would any other training events, a one-day orientation
43 followed up by a memo. Some school corporations make the training orientation optional for teachers. I
44 am not sure why they do this sometimes, but it does occur. However, with Midville Community School
45 Corporation, it was instructed to the high school teachers and administrators that attendance was
46 mandatory. If I remember correctly, teachers, administrators, and support staff were all present at my
47 orientation and training day at the Midville High School. There were even some volunteers and at least
48 one member of the school board present. I opened up the orientation and training as I would at any

school, and I introduced myself. I remember vividly saying, “My name is Presley Fisher, and I love to go snowboarding with my dog Hoosier.” After I introduced myself, I told the teachers and administrators to introduce themselves. I know that schools are tight-knit communities, but opening up with introductions helps to ease the mood and allows them to learn interesting facts about each other. I mean, to be fair, we are all going to be in the same room for the entire day. After our introductions, I will normally ask the teachers and administrators a question. For Midville High School, my question was “What do you believe to be harassment or bullying?” After that initial question, I normally set up my orientation and training with the said introduction above and then split it into three parts. The morning is reserved for managing threats; once we conclude managing threats, we normally break for lunch. The teachers and administrators normally have an hour for lunch, but this is really up to the school corporations. Midville allotted an hour for the teachers and administrators at that orientation and training. After lunch, we go into emotional distress and harassment, and we spend a good chunk of the afternoon going over emotional distress. After emotional distress, we take around a thirty-minute break, and then our remaining time from the middle of the afternoon into early evening is spent going over harassment.

After I had started with my ice breaker, I started to speak on threat management, and during the session, I went into the different types of threats that one can face. In a school environment, threats really can come from verbal interactions, online posts, or physical altercations. I explained that when it came to verbal interactions, it could look like direct statements, indirect warnings, as well as repeated aggressive language. I gave three examples of these, for direct statements, I said, think of it as “I am going to push you.” Whereas for indirect warnings, I said, think of it as ‘You’d best watch yourself.” I explained that for repeated aggressive language, it’s important to be mindful and aware when such actions are being taken. Sometimes, teachers and administrators will miss the repeated aggressive language, simply because it’s happening in a different teacher’s classroom.

For this specific session with Midville, I gave another example to the teachers, specifically for online posts. I walked through a post where a student had posted a photo of another student, and in that post, they made fun of that student. I told the teachers and administrators that even if a post like that seems harmless, they should still go ahead and treat it seriously. After giving my definitions and examples, I instructed the teachers and administrators on what to do if they witness such an event. Teachers and administrators should document the comment, report it to administrators if warranted, check for escalation, and follow school procedures. Once we had gone over threats in detail and the teachers felt comfortable asking questions, we broke for lunch. During that break, I could see that many of them were already discussing situations they had faced in their classrooms and how these new strategies might apply.

After lunch, all the teachers and administrators came back into the auditorium to start the emotional distress session. I decided that rather than jumping in right away, it was important to ease the teachers and administrators into the subject of emotional distress. I started off the session by giving the teachers and administrators the layout of what emotional distress may be. I told the teachers and administrators that emotional distress may look like withdrawn behavior, grades slipping, sudden anger, and appearance changes. I gave a couple of examples of emotional distress shortly after defining what it was. I told the teachers and administrators to picture a student. That student used to sit with friends at lunch and engage in conversation, but now that very student is sitting alone in the library every day for lunch. That was a sign of withdrawn behavior. I also gave examples of grades slipping, such as a sharp decline in test scores and missing assignments. I also informed the teachers and administrators that sudden outbursts towards teachers or peers were a sign of sudden anger; and appearance changes could look minor, such as poor hygiene, hair changes, and unusual clothing shifts.

After giving the examples of emotional distress, I instructed the teachers and administrators on what is proper when observing emotional distress. Document observations, date, time, and behavior.

Consider reaching out to the student in private, or to their parents. Refer them to student services and/or a counselor. However, most importantly, follow district and school procedures. During this session specifically, I noticed a lot of the teachers and administrators nodding, asking questions, and sharing their own experiences. One teacher even brought up an example they had witnessed when they first began teaching, and we worked together as a team to figure out what steps could've been taken during that time. Once we had wrapped up the emotional distress section and the teachers and administrators had had the chance to ask their final questions, we took that final break. After the break, we moved into the last session of the day, which was focused on harassment.

I began the harassment session like any other session I would give at any school corporation, and that was that harassment can take many forms, and it's important that each form is recognized and addressed properly. I then transitioned into the different types of harassment, which include verbal, physical, and cyber harassment. When looking at verbal harassment, it really boils down to name-calling, intimidation, and repeated mocking. I gave the example of a student walking down a hallway, and peers saying "nerd alert", all because he had aced a test that day. I then moved into the physical harassment side, which included unwanted physical contact, intimidation, blocking someone's path, pushing, or even tripping. I gave the prime example of one student pushing another student into the lockers. Then lastly, I gave the definition of cyber harassment, which can look like harassment via texts, group chats, emails, or even social media posts. I gave the example of a group chat circulating memes mocking a student's appearance. For all harassment, I told teachers and administrators that it was important to document such occurrences, even taking screenshots if it was a social media post, informing administrators, and even possibly reaching out to parents.

I informed the teachers and administrators that documentation is key in all aspects, because it not only protects the students, but also teachers and administrators. I also explained that proper documentation over time helps to have consistent reporting and ensures that harassment patterns don't

go unnoticed. After the teachers and administrators had asked their final questions, I wrapped up the session with my classic end-of-day statement. In the statement, I reminded teachers and administrators alike why these trainings matter. I told them that at the end of the day, our shared goal is to keep schools safe, not just physically but emotionally as well. After my closing statement, I sent the teachers and administrators home. I remember that at this specific training for the teachers and administrators, pretty much all those who were in attendance were engaged. At the conclusion of the training, I spoke briefly with Sydney Green, the Dean of Students, and assured them that I would be sending a memo out to the teachers and administrators about everything we had gone through. That way, if the teachers and administrators needed to reflect or go back to what we had talked about in the training, it would be right there for them.

In closing, I want to make it very clear my professional opinion as the consultant who conducted this training. The Midville Community School Corporation took the proper steps by making attendance at the training mandatory, ensuring that all teachers and administrative staff received comprehensive instruction on how to handle threats, recognize emotional distress, and address harassment effectively. My memo, which I provided immediately after the session, reinforced everything we covered and offered staff a tangible, concrete reference to consult moving forward. Based on my extensive experience working with school districts across the Midwest, I can confidently say that this level of training not only meets but exceeds what is considered standard practice in my field. While I acknowledge that no training can prevent every single issue from occurring, I am confident and assured that the Midville Community School Corporation acted responsibly and proactively by equipping its staff with the necessary tools, skills, and knowledge to protect their students and maintain a safe learning environment. This commitment to ongoing safety is commendable and essential.

Therefore, I stand firmly by my training and the collaborative work we accomplished together on that day, believing it to be a crucial step toward fostering a safer, more responsive school community for

everyone involved. Typically, when there is an incident in which there may have been a breakdown in analyzing an incident, it is not due to the training, but due to the individual within the school not wanting to misjudge “horseplay” or “interpersonal immaturity” as bullying or harassment.

**Exhibit 1**

EXHIBIT 1: POST 1
@DramaDeptSpill
"CATS IS TRASH"
PEOPLE WHO LOVE MUSICALS
PEOPLE WHO HATE MUSICALS
25
14
6
be so fr right now... we're actually doing Cats like HOW did this become one of the most "successful" musicals ever?? it's just two hours of people meowing in spirit halloween fur. so cringe and with this midville cast?? nahhh this is about to be an L. #whydidwechoosethis #catsthemusicalwho #plzmakeitstop
2/12/25 9:37 am

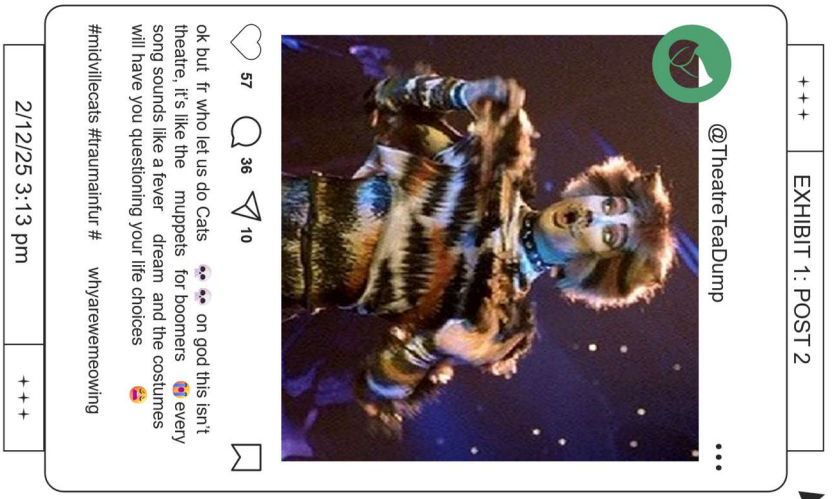


EXHIBIT 1: POST 2
@TheatreTeaDump
57
36
10
ok but fr who let us do Cats on god this isn't theatre, it's like the muppets for boomers every song sounds like a fever dream and the costumes will have you questioning your life choices
#midvillecats #traumainfur # whyarewemeowing
2/12/25 3:13 pm

+ + +

EXHIBIT 1: POST 3

@BackStageBuzz

68 25 12

bro why are we doing Cats 😭😭 like who decided a 2-hour furry cosplay was “art”? 💀 it’s literally just people meowing in jazz shoes. broadway barely pulled it off and we’re out here at midville acting like it’s Hamilton 😭😭

#icant #midvillecats #cringe #help

2/12/25 9:41 pm

+ + +

**Exhibit 2**

EXHIBIT 2: POST 1

@MidvilleDramaSpillz

421 63 19

omg it's actually happening ... CATS. the musical that nobody asked for 😭😭😭 feeling nothing but the ICK rn. like... are we paying to watch people hiss in spandex?? 👀 early reviews saying the performances will have you hoping these cats don't have 9 lives 💅 this should be a crime frfr @TerrySmith #catswithfleas #midvillemusical #ick

2/19/25 10:06 am

EXHIBIT 2: POST 2

@TheatreTeaDump

489 75 23

breaking news: Cats is opening at midville and inside sources say mask up or you might catch secondhand embarrassment 👀👀 the vibes? off. the vocals? meowing. the acting? what acting. someone said this was "art" — yeah, modern torture art 😭😭😭 @TerrySmith #CATastrophe #stopitrightmeow #help

2/19/25 2:39 pm

+ + +

EXHIBIT 2: POST 3

@StageLeftLOL

564 98 25

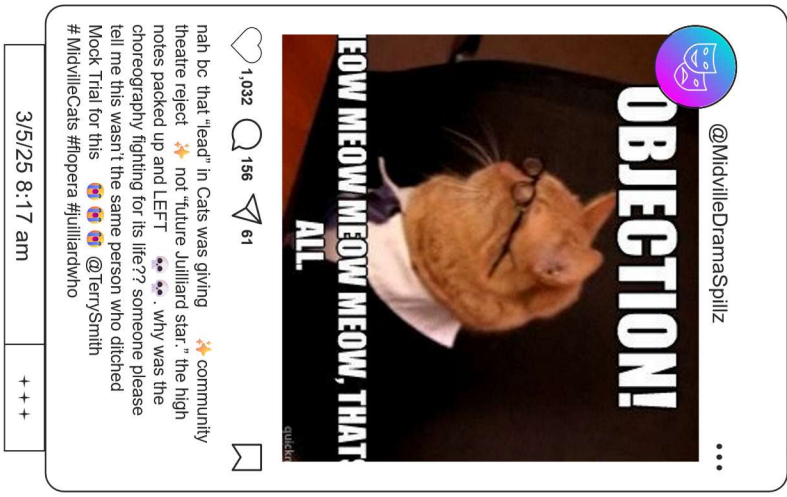
midville's Cats got me like: 😭 😹 😩
literally the ick jumped out.
run. don't walk. away from this litter box
😭 @TerrySmith

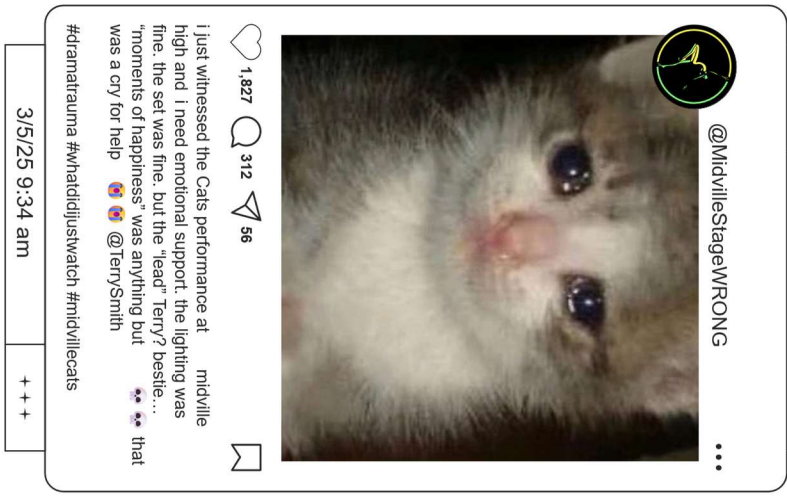
#ickalert #fleaedition #midvillecats
#theatrekidsinshambles

2/19/25 10:22 pm

+ + +

**Exhibit 3**

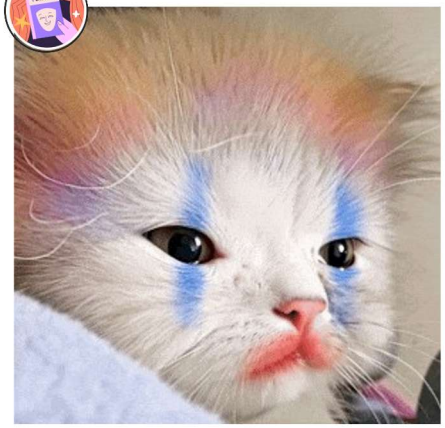

+ + +
EXHIBIT 3: POST 1
@MidvilleDramaSpillz
OBJECTION!
EOW MEOW MEOW MEOW, THAT
ALL.
1,032
156
61
nah bc that "lead" in Cats was giving ✨ community theatre reject ✨ not "future Juilliard star." the high notes packed up and LEFT 💀💀. why was the choreography fighting for its life?? someone please tell me this wasn't the same person who ditched Mock Trial for this 😭😭😭 @TerrySmith #MidvilleCats #floperа #juilliardwho
3/5/25 8:17 am
+ + +


+ + +
EXHIBIT 3: POST 2
@MidvilleStageWRONG
1,827
312
56
i just witnessed the Cats performance at midville high and i need emotional support. the lighting was fine. the set was fine. but the "lead" Terry? bestie… "moments of happiness" was anything but 💀💀 that was a cry for help 😭😭 @TerrySmith
#dramatrauma #whatdidijustwatch #midvillecats
3/5/25 9:34 am
+ + +

+ + +

EXHIBIT 3: POST 3

@BackStageBuzz



1,968 205 87

wow… incredible job to the Cats cast for redefining what musical theatre shouldn't be 💀💀 special shoutout to Terry for making 2 hours feel like 5. when u quit mock trial for the arts but forget to bring the talent... 🤡 @TerrySmith

#iconicfail #broadwaywho #midvillecats

3/5/25 10:53 am

+ + +

**Exhibit 4**

# MEMORANDUM

TO: Teachers, Administrators – Midville County School Corporation
FROM: Presley Fisher, Fisher Educational Consulting, LLC
DATE: August 10th, 2024
SUBJECT: Summary of Training on Threat Management, Emotional Distress, and Harassment

As a follow-up to our recent training session at Midville High School, I am providing this memo as a resource to reinforce the material we covered. This summary is intended to serve as a reference guide for staff when handling situations involving threats, student emotional distress, or harassment.

Threat Management

Types of Threats:
- Verbal (direct, indirect, or repeated aggressive language)
- Online (social media posts, group chats, or other digital platforms)
- Physical (altercations, intimidation, gestures signaling violence)

Action Steps for Staff:
- Do not dismiss any threat, even if it appears minor.
- Document the incident, including time, date, and specific language or actions.
- Report to administration immediately if escalation is possible or evident.
- Follow district and school procedures at all times.

Emotional Distress

Signs to Watch For:
- Withdrawn behavior (social isolation, avoiding peers)
- Declining academic performance
- Sudden anger or unusual outbursts
- Noticeable changes in appearance or hygiene

Action Steps for Staff:
- Document concerning behaviors with date and time.

- Approach the student privately with care and compassion.
- Refer the student to counselors, student services, or administrators as appropriate.
- Always follow school and district reporting procedures.

Harassment

Forms of Harassment:

- Verbal (name-calling, intimidation, repeated mocking)
- Physical (unwanted contact, blocking movement, pushing, tripping)
- Cyber (texts, group chats, emails, or social media)

Action Steps for Staff:

- Intervene immediately to stop harassment when observed.
- Document the incident thoroughly, including screenshots for digital harassment.
- Report to administrators and, if necessary, parents.

Closing Notes

All staff play a crucial role in ensuring that Midville High School remains a safe and supportive learning environment. Consistent documentation, timely reporting, and compassion toward students are key in addressing threats, distress, and harassment effectively.

Please keep this memo accessible and use it as a reference whenever you encounter these situations.

Thank you for your commitment to protecting and supporting our students.

Sincerely,

Presley Fisher

Presley Fisher
CEO & Lead Consultant
Fisher Educational Consulting, LLC

**Exhibit 5**

EMAIL

From: Bays Sanchez
To: Sydney Green
Subject: Reporting of Harassment and Bullying of Terry Smith
Date: January 26, 2025

Dean Green,

In keeping with the school corporation's requirements, I am submitting this formal incident report of potential bullying and harassment.

On January 25, 2025, student Terry Smith reported to me several incidents of mistreatment by fellow students. Terry indicated that there was an ongoing pattern of being bumped into in the hallways, shunned, and sneered at by former mock trial team members.

Terry indicated that the incidents started on January 5, 2025, following their decision to withdraw from the mock trial team and focus on their theatre arts role in the upcoming spring musical. On January 17, 2025, Terry discovered the word "quitter" written across their locker.

Terry believes the hostility was encouraged by the mock trial team coach, Pat Putnam.

In keeping with the harassment and bullying training, I asked Terry if they wanted to immediately consult with our in-school therapist or have immediate contact made with their parents. Terry declined and asked if I was reporting the treatment to the Dean. I indicated to Terry that I was going to submit this written report.

I encouraged Terry to continue to be open with me about any and all incidents.

Thank you,
Bays Sanchez

Midville High School
Theatre Arts Teacher
bsanchez@midville.k12.in.us
(317) 555-7880

MIDVILLE
HIGH SCHOOL
EXCELLENCE THROUGH INTEGRITY

*Midville Class of '05!*

**Exhibit 6**

# Dr. Lynn Carter

Chief Program Officer, Center for Student Safety and Well-Being
Indianapolis, Indiana | lcarter@csswb.org | (317) 555-1432

Professional Summary:
Educational psychologist and national expert in school climate, harassment prevention, and student emotional well-being with over 20 years of leadership at the Center for Student Safety and Well-Being (CSSWB). Experienced in research, policy development, educator training, and implementation of systems designed to protect students from bullying and emotional distress. Former teacher, counselor, and researcher dedicated to promoting safe and supportive learning environments across the United States.

Education:
*Ph.D. Counseling Psychology*
Ball State University, Muncie, Indiana, 2005
Dissertation focus: School Climate, Harassment Prevention, and Policy Development

*M.A. School Counseling*
Ball State University, Muncie, Indiana, 1990
Concentration: School counseling practice, student wellness, academic support, and intervention strategies

*B.S. Education and Psychology*
Ball State University Teachers College, Muncie, Indiana, 1985
Dual focus on instructional practice and adolescent development

Professional Experience:
*Chief Program Officer*
Center for Student Safety and Well-Being, Indianapolis, IN (2005 – Present)

- Oversee national research initiatives on student well-being and school safety
- Lead educator training seminars in harassment prevention and intervention
- Develop and disseminate the Four-Step Response Protocol for managing reports of bullying and emotional harm

- Advise school districts on compliance with federal and state student protection standards
- Frequent keynote speaker at education conferences nationwide

*Guidance Counselor*
Munster High School, Munster, IN (1990 – 2001)
- Provided academic, emotional, and social support to high school students
- Implemented early intervention and student wellness programs
- Trained teachers to recognize signs of emotional distress and harassment

*Teacher*
Munster High School, Munster, IN (1985 – 1988)
- Taught multiple subjects across grade levels
- Advised student organizations and mentored at-risk students
- Developed inclusive classroom strategies integrating social and emotional learning (SEL)

Research and Policy Contributions:
- Principal architect of the CSSWB Four-Step Response Protocol, a nationally recognized framework ensuring timely reporting, intervention, and support following student harassment or bullying reports.
- Lead author of multiple CSSWB policy briefs comparing intervention outcomes in schools with varying response times to harassment.
- Contributor to national studies examining the academic and emotional impacts of sustained bullying and administrative response failures.
- Developer of training curricula for teachers, administrators, and counselors on mandatory reporting obligations and trauma-informed response practices.

Selected Presentations and Seminars:
- "Harassment vs. Conflict: Understanding the Difference," National School Counselors Association Annual Conference, 2022
- "Building Trust Through Intervention: A Framework for Student Safety," Indiana Department of Education Summit, 2021
- "Emotional Distress in Adolescents: When Stress Becomes Trauma," CSSWB National Seminar Series, 2020

Professional Philosophy:
"Conflict can be resolved, but harassment must be stopped."
— CSSWB Guiding Principle, developed under Dr. Carter's leadership

Professional Memberships:
- American Psychological Association (APA)
- American School Counselor Association (ASCA)
- National Coalition for Safe Schools (NCSS)

**Exhibit 7**

# Curriculum Vitae

**Presley Fisher**
Founder & Chief Executive Officer, Fisher Educational Consulting, LLC
Greensburg, Indiana
presley@fisheredconsulting.com | (812) 555-9283

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## PROFESSIONAL SUMMARY

Dynamic educational consultant and former secondary educator with over 20 years of experience in classroom instruction, student conduct administration, and faculty training.

Founder and CEO of Fisher Educational Consulting, LLC — a national consulting firm specializing in threat management, emotional distress recognition, and harassment prevention in schools.

Recognized for developing comprehensive training models adopted by school districts across the Midwest to improve student safety and staff preparedness.

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## EDUCATION

M.S., Higher Education & Student Affairs Administration
*Indiana University Bloomington*
- Studied student conduct management, emotional well-being, and institutional leadership

B.S., Secondary Education
*Indiana University Bloomington*
- Concentration in Social Studies Education

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## PROFESSIONAL EXPERIENCE

Founder & Chief Executive Officer
Fisher Educational Consulting, LLC – Greensburg, Indiana
*2015 – Present*

- Lead a consulting firm providing professional development and training for educators and administrators across the Midwest.
- Design and conduct full-day orientations on threat management, emotional distress intervention, and harassment response protocols.
- Develop post-training memos summarizing procedures and policies for district implementation.
- Collaborate with school corporations to ensure compliance with Department of Education requirements and best practices.
- Conduct mandatory training for districts and schools, including modules on verbal, physical, and cyber harassment.

Vice Principal for Student Affairs & Conduct
Greensburg High School – Greensburg, Indiana
*2010 – 2015*

- Oversaw student conduct policy enforcement and restorative discipline.
- Led crisis management teams addressing harassment, bullying, and emotional health concerns.
- Completed continued education through Indiana University in the management of threats, emotional distress, and harassment.

Teacher – Social Studies & Business
Greensburg High School – Greensburg, Indiana
*1998 – 2008*

- Taught courses in Social Studies and Business.
- Mentored at-risk students and implemented classroom conflict-resolution strategies.
- Observed frequent incidents of student harassment, inspiring later specialization in school safety and student conduct.

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## SELECTED TRAININGS & EXPERTISE

- Threat recognition and de-escalation in K-12 environments
- Emotional distress identification and intervention
- Cyber-harassment and online conduct awareness
- Policy development for anti-harassment and student safety frameworks
- Documentation and incident reporting procedures

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## REPRESENTATIVE ENGAGEMENTS

- Midville High School (Indiana): Conducted mandatory faculty and staff training on managing threats, emotional distress, and harassment.
- Midwest Regional Education Alliance: Facilitated workshops on best practices for student safety compliance.
- Multiple Indiana School Districts: Advised administrators on incorporating post-training memos into district policy frameworks.